Playing Field

Defending formal civil/commercial claims — early post-filing / post-service phase after a pleading appears on the docket following investigation

JTBD CANVAS
HYPOTHESIS

Job Performer

Defendant organization and its key stakeholders (business decision-makers, in-house counsel, outside counsel team, risk/insurance leads). Primary focus: the party responsible for protecting the defendant's interests once a formal claim is asserted.

Aspirations

Be a competent, prepared, strategically disciplined party that controls risk rather than being controlled by the p… the early phase with clarity on exposure, a defensible p… num optionality
Demonstrate respon… legal and business interests

Focus Job

Resolve a formal legal claim asserted against us while protecting interests and minimizing overall harm

Related Jobs

- Maintain business continuity and operatio…
- Protect reputation with customers, partner…
- Manage insurance coverage and notificati…
- Preserve privilege and control information …
- Position the organization for later phases i…
- Satisfy internal governance, board, and co…

Job Steps

PLAN PREPARE EXECUTE MONITOR MODIFY CONCLUDE

Beginning:
Recognize formal assertion of the claim → Obtain and parse the pleading and docket information → Map allegations against known facts and prior investigation → Estimate exposure range and collateral risks → Identify jurisdictional or procedural defects, deadlines, and waiver risks → Clarify internal stakeholders, decision rights, and constraints

Middle:
Align internal stakeholders → Generate and compare strategic pathways → Weigh trade-offs of cost, time, precedent, and relationships → Select response vehicle(s) and case theory → Issue preservation directives and secure relevant information → Prepare and execute the initial formal response → Establish defensive position on the record → Initiate or respond to early engagement with the opposing side and the process

End:
Monitor early reactions and deadlines → Reassess and adapt strategy → Document lessons, open items, and hand-off points → Confirm the claim is joined and the defense is positioned for the next phase

Success Criteria

- Minimize the time to reach clarity on the nature and magnitude of exposure
- Maximize preservation of all viable procedural and substantive defenses
- Minimize the risk of waiver, default, or adverse early procedural rulings
- Minimize unnecessary cost and distraction in the response window
- Maximize internal alignment and decision quality under time pressure
- Maximize optionality for early resolution or efficient later-stage defense
- Minimize reputational or relationship damage from early handling of the claim
- Ensure complete and timely compliance with all court and insurance notice obligations

Emotions

- Feel in control of the early response process
- Feel confident that viable defenses are preserved
- Feel prepared rather than blindsided
- Avoid feeling uncertain about exposure or next steps
- Avoid feeling the organization appears unprepared
- Feel leadership and teams are aligned and supported

Circumstances

- Whether the claim is routine versus high-stakes or repu
- Whether the forum is federal court, state court, or arb
- Whether an ongoing business relationship with the plain
- Whether insurance coverage and carrier involvement appl
- Whether public/media visibility or parallel regulatory
- Whether internal investigation and document readiness i
- Whether resource and bandwidth constraints are signific
- Whether related claims, class potential, or multi-distr